



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 15TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 20TH DAY OF APRIL, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA
HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

NONE

Resolution No. 137-2021

RESOLUTION ADOPTING AN ORDINANCE MANDATING ALL BARANGAYS IN THE MUNICIPALITY OF DAET, CAMARINES NORTE TO REGISTER PERSONS WITH DISABILITY (PWDs) RESIDING WITHIN THEIR TERRITORIAL JURISDICTION TO AVAIL OF THE PRIVILEGES AND INCENTIVES ACCORDED TO THEM UNDER REPUBLIC ACT NO. 9442 AMENDING REPUBLIC ACT NO. 7277, OTHERWISE KNOWN AS THE "MAGNA CARTA FOR DISABLED PERSON, AND REPUBLIC ACT 11228 OTHERWISE KNOWN AS THE MANDATORY PHILHEALTH COVERAGE FOR ALL PERSONS WITH DISABILITY AND FOR OTHER PURPOSES.

WHEREAS, it is enshrined in the 1987 Philippine Constitution particularly in Article XIII, Social Justice and Human Rights, Section 11 thereof, that:

"The state shall adopt an integrated and comprehensive approach to health development which shall endeavor to make essential goods, health and other social services available to all the people at affordable cost. There shall be priority of the needs of the under-privileged, sick, elderly, disabled, women and children. The state shall endeavor to provide free medical care to paupers." (Emphasis supplied);

WHEREAS, Republic Act No. 7277 as amended by Republic Act No. 9442, otherwise known as the "Magna Carta for Disabled Persons, and for other purposes" entitles the PWDs of at least twenty percent (20%) discount from all establishments, medicines, health care, entertainment, transportation fare etc., and granting incentives as they shall be treated as dependent under Section 35 (A) of the National Internal Revenue Code, as amended, for purposes of income Tax payment of the caring tax payer;

WHEREAS, to avail of this privileges and incentives under the law, Persons With Disability must be registered and issued identification cards by the Local Government Unit through the Municipal Mayor or Punong Barangay where the persons with disability resides;

WHEREAS, Republic Act 11228 entitled: An Act Providing for the Mandatory Philhealth Coverage for all Persons With Disability, amending for the purpose RA 7277, the Department of Health is mandated to maintain a Database on PWDs and their health and development needs;

WHEREAS, the local governments are duty bound to disseminate information pursuant to the immediately preceding paragraph and to establish massive registration program, especially with the new Philhealth Program covering all PWDs, however, as per records of the Municipal Social Services and Development Office (MSWDO) and the Persons with Disability Affairs Office (PDAO), the said registration is slowly moving thus, through the barangay government it shall reinforce and effectively reach the grassroots level for the nationwide call;

WHEREAS, the Municipal Ordinance No. 202 s. 2010 of the Municipality of Daet already provides for the issuance of uniform ID for PWDs and its implementing rules and procedures;

WHEREAS, in order to simultaneously provide the persons with disability privilege to acquire PWD Identification Card (IDC) and at the same time be registered at Philhealth to avail the benefits and privileges accorded to them, this ordinance is enacted;

NOW THEREFORE, after due deliberation, on motion of Councilor Tomasito Santiago C. Turingan, with Councilor Rossano C. Valencia, as co-movant, seconded by Councilors Judy Rose T. Gallardo, Apolonio B. Panong, Nestor F. Dalida and Ma. Eliza H. Llovit;

BE IT RESOLVED, as it is hereby resolved to adopt:

MUNICIPAL ORDINANCE NO. 412-2021

AN ORDINANCE MANDATING ALL BARANGAYS IN THE MUNICIPALITY OF DAET, CAMARINES NORTE TO REGISTER PERSONS WITH DISABILITY (PWDs) RESIDING WITHIN THEIR TERRITORIAL JURISDICTION TO AVAIL OF THE PRIVILEGES AND INCENTIVES ACCORDED TO THEM UNDER REPUBLIC ACT NO. 9442 AMENDING REPUBLIC ACT NO. 7277, OTHERWISE KNOWN AS THE "MAGNA CARTA FOR DISABLED PERSON, AND REPUBLIC ACT 11228 OTHERWISE KNOWN AS THE MANDATORY PHILHEALTH COVERAGE FOR ALL PERSONS WITH DISABILITY AND FOR OTHER PURPOSES

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, Camarines Norte, that:

SECTION 1. TITLE - This Ordinance shall be known as the "2021 Mandatory Registration of All PWDs in the Municipality of Daet, Camarines Norte to Avail of the Privileges and Incentives Accorded to them under R.A. No. 9442 amending R.A. No. 7277 and R.A. No. 11228".

SECTION 2. DECLARATION OF POLICY - It is the policy of the municipal government of Daet, Camarines Norte to firmly commit and to safeguard and protect the basic rights and privileges of Persons With Disability, as enshrined in the 1987 Philippine Constitution.

SECTION 3. DEFINITION OF TERMS – The following words and phrases, whenever used in this Ordinance, shall be construed and defined in this section, to wit:

- a.) **Person with Disability** – refers to any person suffering from restriction of different abilities, as a result of mental, physical or sensory impairment, to perform an activity manner or within the range considered normal for human



being. Disability shall mean (1) a physical or mental impairment that substantially limits one or more psychological, physiological or anatomical function of an individual or activities of such individual; (2) a record of such an impairment; or (3) being regarded as having such an impairment;

- b.) **Handicap** - refers to a disadvantage for a given individual resulting from an impairment or a disability, that limits or prevents the functions or activity, that is considered normal given the age and sex of the individual;
- c.) **Permanent disability** – refers to the condition of person with disability having permanent in nature and rehabilitation is impossible;
- d.) **Republic Act No. 9442** – An Act amending Republic Act No. 7277 Otherwise known as the Magna Carta for Disabled Persons and for other purposes;
- e.) **Republic Act No. 7277** – An Act Providing for the Rehabilitation, Self-Development and Self-Reliance of Disabled Person and Their Integration in to the Mainstream of the Society and for Other Purposes;
- f.) **Republic Act No. 11228** – An Act Providing for the Mandatory Philhealth Coverage for All Persons with Disability (PWDs), Amending for the Purpose Republic Act No. 7277, as Amended, Otherwise Known as the "Magna Carta for Persons With Disability";

SECTION 4. MANDATORY REGISTRATION IN THE BARANGAY – All barangay government in the Municipality of Daet, Camarines Norte are hereby mandated to perform registration of Persons With Disability residing in their barangay with the technical support of the Municipal Social Service and Development Office (MSWDO) and the Persons with Disability Affairs Office (PDAO) to avail of the benefits and privileges accorded to them under Republic Act No. 9442 amending Republic Act No. 7277, otherwise known as the "Magna Carta for Disabled Persons, and Republic Act 11228 Otherwise Known as the Mandatory Philhealth Coverage for All Persons With Disability and for other purposes."

SECTION 5. INFORMATION DISSEMINATION – The Municipal Social Services and Development Office (MSWDO) and the Persons with Disability Affairs Office (PDAO) is hereby tasked to implement, monitor and effect widest information dissemination to all barangays in the Municipality of Daet, Camarines Norte for the effective and efficient implementation of this Ordinance.

SECTION 6. PROCEDURES. The procedures for the mandatory registration will be as follows:

- a.) The registration shall be accomplished and start from the barangay.
- b.) The Barangay PWD President or the Barangay Kagawad-in-charge with PWD shall facilitate in the registration of all PWDs in their respective barangays. In case the PWD cannot register in the barangay due to his/her handicap, the Kagawad In-Charge or the PWD President shall personally visit the PWD for registration;
- c.) A bonafide PWD will have to accomplished forms which is made integral part hereof as Annex "A" and Annex "B", such as:
 - i. Annex "A" – PDAO – PWD Registration Form; and
 - ii. Annex "B" – DOH – Application Form (Version 3.0/4.0)
- d.) The PWD Registration Form/s and Application Form/s will be forwarded by the Kagawad In-Charge or PWD President to the PDAO for validation; and



- e.) The PDAO will issue PWD ID in accordance with Municipal Ordinance No. 202 Series of 2010 and Section 7 of this Ordinance, and must register online all qualified PWDs in accordance with R.A. No. 11228.

SECTION 7. VALIDITY OF PWD IDC. The PWD IDC to be issued to person with disability having permanent disability shall have no expiration. The PDAO shall validate the medical records of the applicant to determine whether his/her disability is permanent or temporary.

SECTION 8. ROLES – For the effective implementation and monitoring of this Ordinance, the following are the specific roles, to wit:

- a.) The Barangay Government:
- i. Must help in the identification, registration and gathering of necessary documents for the registration of PWDs;
 - ii. Keep an updated Registry of All PWDs in the Barangay; and
 - iii. Submit to the PDAO the updated Master List of all registered PWDs every 3rd Friday of the month.
- b.) The Persons with Disability Affairs Office (PDAO):
- i. Provide the barangay government of Registration Forms;
 - ii. Consolidate the Registration Forms per barangay and keep an updated Registry of All PWDs in the Municipality;
 - iii. Validate all submitted medical certificates before issuance of PWD ID and register online all PWDs in the mandatory Philhealth Coverage;
 - iv. Maintain a Data Bank/ Data Base of all qualified PWDs; and
 - v. Submit to MSWDO the updated Master List of all registered PWDs every end of the month as part of its Accomplishment Report.
- c.) The Municipal Social Welfare and Development Office (MSWDO):
- i. Keep an updated Registry of All PWDs in the Municipality; and
 - ii. Monitor and supervise the PDAO, the registration of all PWDs, Master List/Data Bank, including the number of issued PWD IDs and Discount Booklets.

SECTION 9. MASTER LIST / DATA BANK – The Master list of Persons with Disabilities at the barangay shall be submitted to the Municipal Social Services and Development Office (MSWDO) through the Persons with Disability Affairs Office (PDAO) which will serve as the Data Bank. The submission of Master List which includes Age, Birthday, Category and Type of Disability must be periodically updated.

SECTION 10. IMPLEMENTATION. The LGU of Daet shall coordinate with the PhilHealth in consultation with the Department of Health (DOH), the Department of Social Welfare and Development (DSWD), the Department of Labor and Employment (DOLE) and the National Council on Disability Affairs (NCDA) for the conduct of the periodic monitoring and evaluation of the implementation of R.A. No. 11228.

SECTION 11. REPEALING CLAUSE – Any previous ordinance/s or parts thereof, which are inconsistent with this ordinance are hereby repealed or superseded accordingly.

SECTION 12. SEPARABILITY CLAUSE – If any provision of this ordinance be declared unconstitutional or invalid, other provision not affected by such declaration shall remain in full force and effect.



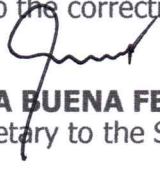
SECTION 13. EFFECTIVITY – This ordinance shall take effect immediately upon its approval.

ENACTED.

RESOLVED FURTHER, to furnished copies hereof, Hon. Benito S. Ochoa, Municipal Mayor, all Barangays through the Punong Barangay, the Sangguniang Panlalawigan of Camarines Norte, the Municipal Social Welfare and Development Office (MSWDO), the Persons with Disability Affairs Office (PDAO), all in Daet, Camarines Norte and all others concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. TOMASITO SANTIAGO C. TURINGAN
Author

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: APR 23 2021